

24STCV04409 24STCV04409

County: los-angeles

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Case Number: 24STCV04409 Hearing Date: June 26, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department

407

HEARING DATE: June 26, 2026 TRIAL DATE: February

7, 2028

CASE: Hattie G. Owens, appointed as Guardian/Conservator of the heir of Shannon Latoy Sloan, Jason Elliott Owens, and representative of the estate of Shannon Latoy Sloan, et al. v. Dyer Adult Residential Facility, et al.

CASE NO.: 24STCV04409

PETITION

FOR WRIT OF MANDATE

MOVING PARTY: Defendant

and Cross-Complainant Dyer Adult Residential Facility

RESPONDING PARTY: N/A

Shannon Latoy Sloan was a resident at a facility owned and operated by defendant Dyer Adult Residential Facility ("Dyer"). In February 2022, Ms. Sloan left the Dyer facility and was struck and killed by a car owned by defendant Joseph H. Taylor ("Taylor") and driven by defendant Jade Anitra Davis ("Davis"). Thereafter, plaintiff Hattie G. Owens, appointed as Guardian/Conservator of the heir of Shannon Latoy Sloan, Jason Elliott Owens, and representative of the

estate of Shannon Latoy Sloan ("Plaintiff"), commenced this action against Dyer, Taylor, and Davis. Dyer cross-complained against Taylor and Davis (hereafter, "Cross-Defendants"). Cross-Defendants have not appeared in this action.

I.

INTRODUCTION

On February 21, 2024, Plaintiff commenced this action against Dyer, Davis, and Taylor.

On April 24, 2024, Plaintiff filed the operative First Amended Complaint ("FAC").

On May 28, 2025, Dyer filed an Answer to the FAC and the Cross-Complaint.

On June 21 and 25, 2024, Davis and Tayler were served with the Cross-Complaint by substituted service.

On March 19, 2026, Dyer requested entry of default against Cross-Defendants. The request was rejected for the following reason: "Other - POS 3-18-26---Missing "Notice to the person served". File corrected Proof of service for both cross defendants use form POS-010. Submit new updated Request for default with all new dates."

On June 12, 2026, Dyer filed this petition for writ of mandate pursuant to Code of Civil Procedure section 585(a).

The petition is unopposed.

II. DISCUSSION

Dyer petitions the court for a writ of mandate to compel the court clerk to enter default against Cross-Defendants because Dyer properly effected service of process, Cross-Defendants have not answered, and Dyer has submitted a written application for entry of default.

Where the court clerk receives proof of service of the

summons and sees no appearance on file, the clerk has a ministerial duty to enter the default. (Todd v. Everett (1966) 247 Cal.App.2d 209, 211.) However, “[t]he clerk has no authority to enter the default of a defendant in the absence of valid proof of service of summons.” (Woods v. Stallworth (1960) 177 Cal.App.2d 517, 520.) In other words, a court clerk must reject a request for entry of default if the proof of service of summons is defective.

The petition lacks merit.

The Judicial Council has adopted Form POS-010 for mandatory use as proof of service of summons. Dyer did not use Form POS-010, but instead used a type-written form pursuant to California Rules of Court, rule 2.150. Rule 2.150 states, in pertinent part, “[n]otwithstanding the adoption of mandatory form Proof of Service of Summons (form POS-010), a form for proof of service of a summons and complaint prepared entirely by word processor, typewriter, or similar process may be used for proof of service in any applicable action or proceeding if the following conditions are met: ... (5) The text of form POS-010 must be copied in the same order as it appears on form POS-010 using the same item numbers.” (Cal. Rules of Court, rule 2.150(a)(5).) Here, the court clerk rejected Dyer’s request for entry of default for this very reason. As stated in the notice of rejection: “Missing “Notice to the person served”.” Item 5 of Judicial Council Form POS-010 is “Notice to the person served.” Dyer’s type-written proof of service of summons does not include Item 5 of the Form POS-010. Dyer submitted a defective proof of service of summons. The clerk therefore had a ministerial duty to reject Dyer’s request for entry of default.

III. CONCLUSION

Based on the foregoing, the petition is DENIED.

Dated: June 26, 2026

Brock T. Hammond

Judge of the
Superior Court